LAWS2100 Jurisprudence
LAWS8005 Theories of Law and Justice

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Week 8 – Outsider Jurisprudence



Outsider Jurisprudence

The law reflects and perpetuates a dominant perspective (remember the CLS)

Critical approach to law and legal institutions (remember Legal Realism)

Different aspects: gender, race, culture, sexuality…

Disadvantage and disempowerment in marginalised social groups

Concern with equality, justice, and legal reform

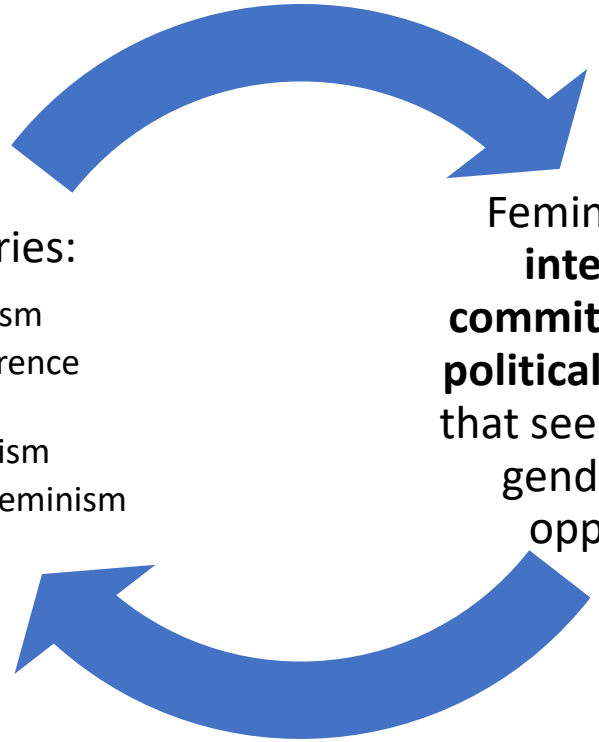
Language and power

Outsider jurisprudence can help us rethink the question ‘what is law’?

Outsider jurisprudence can help us rethink the question ‘what is legal theory’?

Feminism and Feminist philosophy

Feminism



Four categories:

1. Liberal feminism
2. Cultural/difference feminism
3. Radical feminism
4. Postmodern feminism

Feminism as an **intellectual commitment** and a **political movement** that seeks an end to gender-based oppression

Feminist philosophy

- Philosophical approaches to feminism
- Feminist interventions in conventional areas of philosophical research
- Feminist research agenda

→ Despite their differences, feminist legal theorists see the law as a social system that reflects, maintains, and legitimises the patriarchy

Feminism

Feminism is **an intellectual commitment and a political movement** that challenges male power and privilege, and seeks to end the *systemic* subordination of women

Feminists tend to concentrate on issues of particular concern to women

These issues include, for example: protecting women's bodily autonomy; protecting women's reproductive freedoms; ensuring equal protection in law; eliminating discrimination in education, hiring, promotion and pay…

While feminists tend to share these interests and political commitments, they do not share the same theoretical approach

The feminist project

Feminism is essentially about representing women's side of things

Feminist theory recognises that throughout history, men have exclusively conducted public discourse

Women have been left out, silenced, misrepresented, disadvantaged, and subordinated

Patriarchy refers to the structures of human societies that are organised hierarchically, in a way that subordinates women to men

Feminism is about contesting the idea that patriarchy is good, natural, and inevitable

The feminist project invites us to imagine how our societies could be structured differently

Liberal feminism

Liberal feminism was a response to the view, **entrenched in law until relatively recently**, that men and women occupy 'separate spheres' and, therefore, should be treated differently

Justice Joseph P. Bradley: "The civil law, as well as nature herself, has always recognized a wide difference in the respective **spheres** and destinies of man and woman. Man is, or should be, woman's protector and defender. The natural and proper timidity and delicacy which belongs to the female sex evidently unfits it for many of the occupations of civil life. **The constitution of the family organization, which is founded in the divine ordinance, as well as in the nature of things, indicates the domestic sphere as that which properly belongs to the domain and functions of womanhood.** The harmony, not to say identity, of interests and views which belong or should belong to the family institution, is repugnant to the idea of a woman adopting a distinct and independent career from that of her husband."

Bradwell v Illinois, 83 US 130 (1873), 141–2

Liberal feminism

- The goal of liberal feminism is **equal treatment**
- Most of the legal gains in the 60s and 70s used this theoretical approach
- Anti-discrimination legislation, such as the *Sex Discrimination Act 1975* in the UK, and the *Sex Discrimination Act 1984* (Cth) in Australia, which prohibit (direct) discrimination on the basis of sex in areas of employment, housing, and the provision of goods and services
- For liberal feminists, the solution to the oppression of women is to remove all formal barriers to their equal participation in social, economic and political life
- **Individuals should be assessed on their merits, rather than on their membership to a group**

Liberal feminism and the male norm

- Formal equality did not translate into substantive equality
- Formal equality failed to address the ways in which discrimination on the grounds that are unique to women, such as pregnancy, could be classed as a form of discrimination
- Direct vs. indirect discrimination (treatment vs. impact)
- Public vs. private discrimination
- Not all women can take advantage of their equal rights
- **It implicitly assumes male experiences and perspectives as the norm/benchmark**

Difference feminism

Cultural/Difference feminism embraces the differences between men and women

Reaction to an idea of formal equality that forces women to assimilate to patriarchal structures, acting and behaving like men

Carol Gilligan: ethics of care vs. ethics of justice

This approach has led some legal scholars to argue that the law (which currently reflects only male values) should acknowledged and recognised the perspective and the values of women

Contra: This approach can reinforce stereotyped views about women which have been the main cause of their social subordination and inequality

Radical feminism

Katharine McKinnon

- Women do not so much speak with a different voice – they have no voice at all
- Women **as a class** are dominated by men **as a class**
- Oppression on the basis of sex is the most fundamental form of domination in society
- Academic work and political activism on the issue of pornography (the consumption of pornography seen as a political issue, not a private sex-related preference)

- Does radical feminism see women only as victims?
- Does this approach help, or harm the feminist cause (by constantly claiming that the autonomy and agency of women is overridden by male oppression)?

Postmodern feminism

- Influence of postmodernism
  - Distrust of grand theories/narratives
  - Deconstruction of binary oppositions (male/female; reason/emotion; nature culture)
- Two key concepts: ‘essentialism’ and ‘intersectionality’
  - In this context, **essentialism** is the flaw of generalizing about women or assuming that women have an ‘essence’ (and common interests)
  - **Intersectionality** acknowledges that women belong to different racial groups, different cultures, different religions, and different classes (these multiple axes of identity intersect to create totally different kinds of gender subordination)

Potential issues with Postmodern feminism

- Influence of postmodernism
- Is one does not share exactly the same social position as someone else, they are unable to understand the perspective and experiences of that person? (In her article, Naffine points out the impossibility of ever arriving at the full picture of each woman's individual circumstances – at what point do we know enough?)
- How can women's situation be improved if feminists are not prepared to speak for women? (Naffine discusses this issue, pointing out that an emphasis on different subjectivities does not advance the project of legal reform, and that some feminists argue that all it leads to is political paralysis)

In Praise of Legal Feminism (2002)

- Ngaire Naffine is Professor Emerita at the University of Adelaide
  - *Manning the Law: Why the Legal Person Remains a Man* (2025)
  - *Criminal Law and the Man Problem* (2019)
  - *Law's Meaning of Life: Philosophy, Religion, Darwin and the Legal Person* (2009)
  - *Female Crime: The construction of women in criminology* (1987)

- Professor Naffine's article is a "reflective appreciation of feminist legal theory", organised in four parts:
  - **Aims and methods of the feminist undertaking in law**
  - Female agency
  - The female legal actor/subject
  - **Feminist scholarship and the legal academy**

The feminist project and legal theory

- Feminist legal theorists investigate and challenge the ways in which the law is not impartial and objective (and, when appearing to be impartial, is not applied equally), upholding patriarchal institutions and participating in the systematic oppression of women
  - Some examples: sexual assault law, the criminal defence of provocation, the martial rape exception, the historical reluctance to intervene in cases of domestic violence…
- Theory and practice
- Various methods, including “consciousness raising”, the naming and re-naming of the injuries done to women, and the legal recognition of those injuries
- New expressions and legal categories, such as ‘sexual harassment,’ ‘date rape,’ or ‘domestic violence’

Feminist epistemology

- Feminist legal theorists are “neither stranger nor native”; they are the ‘outsider within’ (see Naffine’s article, page 77)
- Naffine discuss the “epistemic privilege of marginality”
- Particular perspective on the deficiencies of law
- Generous methodology, which is receptive of other bodies of knowledge, and open to revision
- Epistemology of largess (versus “the jurisprudence of orthodoxy”)
  - “…a willingness to concede that new points of view might be better than well-used ones; that one’s view is necessarily limited, partial, and so consistently in need of revision.” (page 81)

Feminist Legal Theory

- Feminist legal theory is interested in analysing the extent to which our legal systems reflect (and reinforce) a (white) male perspective
  - Challenging the patriarchy in the legal context also has consequences for the research agenda of legal theorists
- Feminist legal theory considers how the differences between man and women should / should not be incorporated in legal rules, legal institutions, and legal education
  - Challenging the (white) male norm requires us to re-think some conventional legal concepts and values (e.g., autonomy, individual rights)

The public-private distinction

- ‘Separate spheres’ ideology – public sphere for men and private sphere for women (and children)
- The law has incorporated the public-private distinction
- Challenging this distinction – ‘The personal is the political’
  - Private inequality is the source of public disadvantage
  - The politics of power permeates the private sphere
  - The problems faced by women in the private sphere are a matter of systemic injustice
  - The family is a political institution

Some topics of interest

- Abortion rights
- Rape law
- Sexual harassment and exploitation
- Surrogate motherhood
- Pregnancy and maternity leave
- Pornography
  - For MacKinnon, pornography is “an institution of gender inequality”
  - Catharine MacKinnon worked with Andrea Dworkin (1946-2005) to draft a model civil rights ordinance to offer civil recourse for harms connected to sexually explicit materials (displaying extreme sexual inequality)

The impartiality of laws and judicial reasoning

- The terms ‘rational,’ ‘impartial’, and ‘objective’ come up in legal discourse and in the theoretical study of the nature of law
- These terms are often defined in terms of their opposites
- Our understanding of the law reflects this divided view of the world
- The law appears to be committed to a particular style of reasoning that favours objective, impartial and disinterested thought over emotion or personal opinion
- The justification for this type of reasoning is that everyone will be treated equally before the law, regardless of race, sex or religion
- **Equality before the law** is achieved by the impartiality of laws and judicial reasoning

The feminist challenge to conventional legal scholarship

- The neutral framework of legal reasoning
- Law's autonomy and discreetness
- Law's neutrality and objectivity
- Law's centrality
- Law as a system of enacted rules or norms
- Law's unity and coherence
- Law's rationality

See Nicola Lacey, *Unspeakable Subjects – Feminist Essays in Legal and Social Theory* (Hart Publishing, 1998)

Nicola Lacey is School Professor of Law, Gender and Social Policy at LSE Law School

Community in Legal Theory: Idea, Ideal or Ideology?

In Chapter 5, Lacey reflects on the significance of **community** – "one particular discursive figure in contemporary Anglo-American legal theory" (p. 128)

- Lacey explores the relevance for law and legal theory of the main currents of argument within the liberal-communitarian debate
- **Secondly, she assesses the significance of the currency of discourses of community in legal theory, focusing on the rhetorical function of different appeals to "community"**
- **Thirdly, she explores the implications of this analysis for the relationship between different theoretical projects around law (CLS, socio-legal studies, postmodernism and critical theory)**

The liberal-communitarian debate

Should individuals be understood primarily as autonomous agents (as liberals argue) or as socially embedded beings shaped by communal ties (as communitarians contend)?

- Liberal theorists emphasise individual rights, personal autonomy, and the primacy of justice. They tend to prioritise universal norms and abstract principles over particular cultural or historical contexts.
- Communitarian thinkers argue that individuals are not isolated decision-makers, but are deeply influenced by their communities, traditions, and social roles. From this perspective, liberalism overlooks the way identities are formed through shared practices and narratives.

The liberal-communitarian debate also touches on the nature of the self, the role of the state, and the value of multiculturalism.

Some practical achievements

- The defence of provocation has since been tightened up in various jurisdictions
- The marital rape exception has been removed
- The *Crimes Legislation Amendment (Sexual Consent Reforms) Act 2021* (NSW) implemented consent reforms that aim to:
  - clarify consent provisions in the *Crimes Act 1900*, including that consent is a free and voluntary agreement that should not be presumed
  - clarify that consent involves ongoing and mutual communication

Critical Race Theory

- Critical Race Theory (CRT) emerged in the United States in the 1970s, gaining momentum in the 1990s
  - Some key scholars: Derrick Bell, Alan Freeman, Kimberlé Crenshaw, Richard Delgado, Cheryl Harris, Charles R. Lawrence III, Mari Matsuda, Patricia J. Williams
- Especially in the US, CRT has been influenced by the history of the trans-Atlantic slave trade, and the civil rights movement
- Many of the criticisms offered by CRT can be applied to other legal systems (including Australia)
- CRT scholars offers a critique of liberalism as the hegemonic ideology of the West
- CRT is linked to other critical approaches to law and society, in particular: Critical Legal Studies, Critical Race Theory, and the Critical Philosophy of Race

CRT – some main themes

- Race, as a socially, culturally, and legally constructed category
- Race exists because we have decided to make certain characteristics, like skin colour, **relevant**
- Critique of the idea that race is an irrelevant category, and that racial equality involves extending equal treatment to members of different races (because racism can coexist with formal “objectivity” and “neutrality”)
- Storytelling and narratives as a way of giving voice to unheard perspectives
- **Importance of rights** – especially for historically disadvantaged minorities
- **Intersectionality**

CTR and Legal Theory

CRT examines how laws and legal institutions perpetuate racial hierarchies, even when they appear neutral. It seeks to uncover the ways in which legal doctrines, practices, and structures sustain systemic racism.

CRT prioritises storytelling, personal narratives, and experiential knowledge (specially from communities of color) as valid and essential sources of legal insight. This challenges dominant legal paradigms that often exclude these voices.

CRT scholars question liberal ideals such as meritocracy, equal opportunity, and colorblindness, arguing that these concepts can obscure the realities of structural racism and hinder meaningful reform.

CRT emphasises how race intersects with other identities (e.g., gender, class, sexuality, disability) to produce complex forms of discrimination and exclusion.

CRT explores how whiteness operates as a form of property which confers legal and social advantages; and seeks to dismantle these embedded privileges.

CRT is not just descriptive, but normative. It aims to transform law and society to achieve racial justice, often engaging with activism, policy reform, and community-based legal strategies.

Talkin’ Up to the White Woman (2000)

- Aileen Moreton-Robinson, Goenpul woman of the Quandamooka people (Moreton Bay), Distinguished Professor of Indigenous Studies at Queensland University of Technology (2016)
- *The White Possessive: Property, Power and Indigenous Sovereignty* (2015)
- In her book *Talkin' Up to the White Woman: Indigenous Women and Feminism*, Prof Moreton-Robinson gives a very through account of how Indigenous women have been represented in white Australian feminism, how white feminism has positioned Indigenous women, and the participation of this feminism in colonial oppression
- Moreton-Robinson demonstrates the ways in which Indigenous women’s voices have been silenced, and demands for their rights in the areas of maternity allowances, voting rights, and labour rights were not included in the demands made by white feminists